

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 20
JUDICIAL OFFICER: MELISSA O'CONNELL
HEARING DATE: 09/17/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter.
(Local Rule 3.43(2).)

Note: In order to minimize the risk of miscommunication, parties are to provide an EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED. Dept. 20's email address is: dept20@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 20 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling must be attached to the proposed order when submitted to the Court for issuance of the order.

Discovery Law & Motion

1. 9:00 AM CASE NUMBER: C23-00676
CASE NAME: NADIA HAMADE VS. HELGE THEISS-NYLAND
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTEROGS, SET 2
FILED BY: HAMADE, NADIA
TENTATIVE RULING:

The Plaintiff's Motion to Compel further responses to Special Interrogatories (Set 2) is GRANTED IN PART and DENIED IN PART. Plaintiff's request for sanctions is GRANTED, but the sanctions have been reduced to a reasonable amount.

Plaintiff provided Defendant with 55 special interrogatories. In their initial response, Defendant provided objections only. However, Defendant has supplemented their responses since the filing of Plaintiff's Motion to Compel. This court reviewed all of Defendant's supplemental responses and orders the following:

The court orders supplemental responses to Special Interrogatories Nos. 132, 146, 165, 166, 168, and 174. No further responses are ordered in the remaining Special Interrogatories as the court

finds Defendant's supplemental responses to be code-compliant responses.

Special Interrogatory No. 132: Defendant provided supplemental responses with the years of experience for the listed individuals but failed to indicate the educational background for them; the answer did not address the entire prompt.

Special Interrogatory Nos. 166 and 174: Defendant provided supplement responses however, they indicated that they "agree to produce" specific documents not that they have in fact provided Plaintiff with these documents to make the response code-compliant.

Special Interrogatory No. 165: Defendant provided objections only to the request to identify each person who was responsible for engaging in the interactive process with employees who requested reasonable accommodations during the relevant time period. The court finds Defendants objections to be without merit. The terms in this request were defined by Plaintiff in their initial discovery request and are therefore not vague, ambiguous or overly broad. Ambiguity is a valid objection only if it precludes an intelligent reply, which here, it does not. (*Cembrook v. Superior Court* (1961) 56 Cal.2d 423, 430.) The court also finds the request to be relevant to Plaintiff's claims in this case to the extent that it helps identify individuals who had some role in the accommodations process with Defendant's business. Finally, while the court appreciates Defendant's objection as to third-party privacy rights, in re-reviewing Plaintiff's request, it is simply asking for the identity of the persons who are on the business side of engaging in the interactive process and does not appear to be asking for the names or other details of the individuals with the business who would be *seeking* any accommodations. The latter this court would agree would trigger third party privacy rights.

Special Interrogatory No. 168: Plaintiff sought a description of any complaint or concern Plaintiff herself raised to Bay City Mechanical during the relevant time period: (a) failure to pay commissions or bonuses as outlined in her offer letter; or (b) failure to reimburse business expenses. Defendant provided objections only. The court finds Defendant's objection to be without merit. The request is not overly broad, vague or ambiguous, it does not appear to trigger any attorney-client privilege communications, especially without a privilege log, as its seeking Plaintiff's complaints and concerns, and finally because it only asks for Plaintiff's complaints it does not implicate the privacy rights of third parties.

As to Plaintiff's other requests, the court disagrees with Plaintiff's position and finds that supplemental responses are not required. Specifically, Plaintiff raises Special Interrogatory No. 122 as being incomplete due to Defendant's responses to Nos. 132 and 161. A party's belief that a response is *not good enough* is not a basis for issuing a motion to compel. (See e.g. *Holguin v. Superior Court* (1972) 22 Cal. App. 3d 812, 820 ["Plaintiffs' position in this proceeding is therefore, in effect, that certain matters which defendants have denied are so unquestionably true, that they cannot deny them. It may well be that from their point of view defendants might be better off, in the long run, if instead of denying all the requests outright, they had denied some of

them for lack of information or belief. It may also be that after a trial it will appear that plaintiffs are entitled to financial sanctions under subdivision (c), section 2034 of the Code of Civil Procedure. We do not see, however, how any court can force a litigant to admit any particular fact if he is willing to risk a perjury prosecution or financial sanctions.”].) If Defendant fails to provide certain information in some requests and not others this court cannot force them to do otherwise and Defendant can anticipate the consequences of not fully answering interrogatories when litigation comes about.

Here, the court finds sanctions appropriate. Pursuant to California Rule of Court Rule 3.1348, subdivision (a), “[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though ...the requested discovery was provided to the moving party after the motion was filed. The court does not find any substantial justification for Defendant not providing the requested discovery during the initial request. However, the court does find that supplemental responses have been provided and a majority of which are code-compliant, therefore the court finds the requested amount to be unjust. The court orders Defendant to pay sanctions in the amount of \$500.

2. 9:00 AM CASE NUMBER: C23-00676
CASE NAME: NADIA HAMADE VS. HELGE THEISS-NYLAND
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD, SET 2**
FILED BY: HAMADE, NADIA
TENTATIVE RULING:

Plaintiff’s Motion to Compel further responses to Requests for Production, Set 2 is GRANTED IN PART and DENIED IN PART. Plaintiff’s request for sanctions is GRANTED, but reduced.

Plaintiff provided Defendant with 43 Requests for Production (Nos. 71-113), in Set Two. Defendant’s initial responses were objections only with no substantive responses. Subsequently, Defendant maintains they served substantive supplemental responses to all 43 requests on September 2, 2026.

The court reviewed all 43 responses by Defendant and ORDERS further responses to Requests for Production Nos. 77, 88, 89, 91, 92, 93, 97, 98, 99, 100, 101, 102, 104, 105, 106, 107, 110, 111, 112, and 113.

Request No. 77: Defendant maintains that no documents ever existed in response to this request but fails to indicate that a diligent search was conducted to make that determination (whereas they did report such a search in Nos. 78-79, 83, 90.) (See Cal. Code of Civ. Proc. § 2031.230: A representation of inability to comply affirms a diligent search and reasonable inquiry, specifies why (never existed, destroyed, lost, stolen, or not in the party's control), and names any person believed to have the item.)

Request Nos. 88, 89, 91, 92, 93, 97, 98, 99, 100, 104, 105, 106, 107, 110, 111, 112, 113:

Defendant provides the same response—Defendant has already produced all documents responsive to this request that are in its possession, custody, or control—without reference to any bates stamped pages or any identifying information for such documents. (See Cal. Code of Civil Procedure §2031.280, subdivision (a), requiring the documents or category of documents be identified with the specific request number to which the documents respond.)

Requests Nos. 101-102: Defendant maintains that they will produce all non-privileged documents in response to these requests. However, according to Plaintiff, Defendant failed to provide any support for their asserted privileges, such as a privilege log, and cannot unilaterally narrow the response to the requests without such support. “The need for a privilege log would arise after a plaintiff properly moved to compel further responses to contest defendant’s conclusory attorney-client and work product objections pursuant to Code Civ. Proc., § 2031, subd. (m). The privilege log would permit the court to determine whether a specific document was or was not privileged.” (*Best Products, Inc. v. Superior Court* (2004) 119 Cal. App. 4th 1181, 1189.) California Code of Civil Procedure §2031.240(b) requires that if the “responding party objects to the demand for inspection the response must both (1) identify withheld items with particularity, and (2) state specific grounds; privilege or work-product claims require sufficient factual information, including a privilege log if necessary.” (*Id.*)

The court DENIES all other requests for further production of documents including responses to Request Nos. 108-109. The court finds that Plaintiff’s request for “all settlement agreements, separation agreements, or releases signed by any current or former Bay City Mechanical employee since February 1, 2015, to resolve any allegations of harassment, discrimination, retaliation, or hostile work environment claims” and “all documents concerning any payment or benefit provided to any Bay City Mechanical employee in exchange for resolving claims of harassment, discrimination, retaliation, or hostile work environment claims since February 1, 2015” do implicate the privacy rights of third parties that requires additional processes to ensure their rights are protected and a general protection order would not appear to lend this protection.

The court finds sanctions appropriate. Pursuant to California Civil Code of Procedure §2031.310(h), “the court *shall* impose a mandatory monetary sanction against any party who unsuccessfully makes or opposes a motion to compel further response to a demand for inspection, unless the court finds that the party subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (*Id.*) Defendant provided not substantial justification for their failure to initially comply with all requests or their subsequent failure on the aforementioned requests. However, the court finds the amount unreasonable and ORDERS Defendant to pay sanctions in the amount of \$500.

3. 9:00 AM CASE NUMBER: C23-01947

CASE NAME: ATHINA HUERTA VS. EAST BAY CARDIOVASCULAR AND THORACIC ASSOCIATES, INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL 2ND FURTHER RESPONSES TO PROD OF DOCS, FILED 4/17/26 / PREV. SET ON 9/18/26 IN DEPT 32. RESET IN DEPT 20 FOR THIS HEARING ONLY.**

FILED BY: HUERTA, ATHINA

TENTATIVE RULING:

Plaintiff's Motion to Compel is GRANTED. Defendant is to provide supplemental responses to Request for Production of Documents, Set One, Nos. 36-38 and 44-46 by October 2, 2026. Plaintiff's request for sanctions is also granted but is reduced. Defendant is to pay Plaintiff \$950 by October 2, 2026.

Plaintiff seeks an order to compel Defendant East Bay Cardiovascular and Thoracic Associates, Inc., to provide additional further responses to Plaintiff's Request for Production of Documents, Set One, Numbers 36-38 and 44-46, and to confirm in the further response that Defendant has actually engaged in a proper search for Electronically Stored Information ("ESI") as previously agreed to prior to Plaintiff's first Motion to Compel Further Responses.

Plaintiff filed a Motion to Compel Further Responses on August 27, 2025, which was granted and sanctions ordered by the Court December 12, 2025 (filed December 29, 2025). Defendant submitted a Non-Opposition prior to the hearing stating they did not intend to oppose and that it would "submit supplemental discovery responses as previously agreed upon with Plaintiff's Counsel."

Requests for Production 36-38 and 44-46 seek ESI related to Defendant's witnesses', including Melissa Lacy, Jessica Freitas and Jem DeSanti, communications with or specifically referencing the Plaintiff.

Plaintiff maintains that their communications with Defendant regarding the Requests for Production of Documents indicated that the Defendant had not engaged in a diligent search for all documents as ordered by the court. Defendant maintains that not only did they engage in such a search prior to the court's initial order but also have done so after. In the end, Defendant produces no more documents than they did in response to Plaintiff's requests before any representations were made regarding the nature and degree of any search for ESI.

What confounds the court is why Defendant did not provide verified responses to the discovery requests documenting their search efforts as required by statute and the court's previous order, arguably eliminating the need for this motion. (See Cal. Code of Civ. Proc. §§2031.310, subdivision (a)(2) and 2031.230) Unfortunately, Defendant's failure to do so leaves this court with the specter of specious claims. "The object of verification is to assure good faith in the averments or statements of the party." (*H. G. Bittleston Law and Collection Agency v. Howard* (1916) 172 Cal. 357, 360, quoting *Patterson v. Ely* (1861) 19 Cal. 28; see also *Silcox v. Lang* (1889) 78 Cal. 118, 122.)

The court orders Defendant to provide further verified responses to Plaintiff's Requests for Production of Documents Request Nos. 36-38 and 44-46 by October 2, 2026, which shall include verified statements as to any searches conducted for ESI to adequately respond to Plaintiff's requests.

Here, the court finds sanctions appropriate. “Imposing a monetary sanction against the party that unsuccessfully makes or opposes a motion is mandatory, unless there was substantial justification for the failure to respond or the circumstances make imposing a sanction unjust...If a party then fails to obey the order compelling a response, the judge may make those orders that are just, including imposing a monetary sanction, an issue sanction, an evidence sanction, or a terminating sanction.” (*California Judges Benchbook: Civil Proceedings—Discovery* (Cal CJER 2022), p. 484, §19.12, citing Cal. Code of Civ. Proc. §2031.300, subdivision (c).) Defendant is ordered to pay Plaintiff \$950 in sanctions by October 2, 2026.

4. 9:00 AM CASE NUMBER: C25-02614
CASE NAME: D&A TRANS, INC., VS. BMW OF NORTH AMERICA, LLC,
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUESTS**
FOR PRODUCTION OF DOCUMENTS, SET TWO, FILED 4/1/26 / CONT'D FROM 9/11/26 IN DEPT 32.
SET IN DEPT 20 FOR THIS HEARING ONLY.
FILED BY: D&A TRANS, INC.,
TENTATIVE RULING:

The parties are ORDERED to engage in good faith meet and confer efforts and provide the court with a joint statement identifying any outstanding discovery issues by November 6, 2026. This motion is continued and will be heard on November 12, 2026, 9:00 a.m. in Department 20, if issues are not resolved.

Plaintiff, D&A Trans Inc., seeks a motion to compel further responses to Requests for Production of Documents, Set Two, Nos. 2, 4-8, 10, 12-18, 20, 22-23, 25-26, 29-30, 32-34, 36, and 38-50. This is one of approximately 6 motions to compel that have been filed by the parties requesting court intervention, two of which were already before this judge.

This court disagrees with Plaintiff’s notion that “where counsel initiated meet-and-confer efforts, requested a conference, clarified the dispute, and sought an extension before filing the motion” represents good faith meet and confer efforts. Plaintiff cites *Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 431, indicating that further discussions are not required if they would be futile. Yet, the parties did not engage in any discussions about Defendant’s responses to Plaintiff’s requests for production thus it would be premature to render further engagements pointless. “Some effort is required in all cases: there is no exception based on speculation that prospects for informal resolution may be bleak.” (*California Judges Benchbook: Civil Proceedings—Discovery* (Cal CJER 2022), p. 32, §2.25, citing *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1438.)

There must be a "serious effort at negotiation and informal resolution" and "the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1438-1439; See also *Clement v.*

Alegre (2009) 177 Cal.App.4th 1277, 1293.) “Argument is not the same as informal negotiation; attempting informal resolution means more than the mere attempt by the discovery proponent to persuade the objector of the error of his ways; and a reasonable and good faith attempt at informal resolution entails something more than bickering with opposing counsel. Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (*Clement, supra*, p.1294.) The court does not find the parties have engaged in serious efforts to resolve the issues now before it.

Furthermore, of some guidance to the parties as they engage in good faith discussions related to this Song-Beverly Act case, it would be prudent for the parties to recognize that in general, documents relating to other vehicles of the *same* make, year and model as the subject vehicle, in which the vehicles have the *same* alleged defect or nonconformity as Plaintiff’s vehicle, are relevant and discoverable. (See *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 971; *Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138, 154; *Jensen v. BMW of North America, LLC* (S.D. Cal. 2019) 328 F.R.D. 557, 562.) Requests should be narrowed accordingly and eliminate any guess-work as to what conditions, defects, or nonconformities Plaintiff is seeking data or other documents relating to and Defendant should anticipate compliance therewith.